Executive Employment & Restrictive Covenants Agreement

EXECUTIVE EMPLOYMENT, CONFIDENTIALITY, AND RESTRICTIVE COVENANTS AGREEMENT

This Agreement is entered into on March 1, 2026, by and between Apex Hyperion Robotics Corp., a Delaware corporation ("Company"), and the undersigned individual ("Executive").

SECTION 1: AT-WILL EMPLOYMENT AND DUTIES

Executive shall serve as Vice President of AI Engineering. Employment with the Company is strictly at-will, meaning the Company may terminate Executive at any time, with or without cause, and without prior notice.

SECTION 2: COMPREHENSIVE INTELLECTUAL PROPERTY ASSIGNMENT

Executive agrees that all inventions, designs, algorithms, codebases, trade secrets, patents, and copyrighted materials conceived, developed, or reduced to practice by Executive—WHETHER OR NOT ON COMPANY TIME, ON COMPANY PREMISES, OR USING COMPANY EQUIPMENT, AND INCLUDING SIDE PROJECTS DEVELOPED ON PERSONAL COMPUTERS—during the term of employment shall belong exclusively and perpetually to Company. Executive hereby irrevocably assigns all rights, title, and interest therein to Company and waives all moral rights.

SECTION 3: NON-COMPETITION COVENANT (24 MONTHS WORLDWIDE)

During Executive's employment and for a period of twenty-four (24) months following the termination of employment for ANY reason (voluntary or involuntary):

Executive shall NOT directly or indirectly, whether as an employee, founder, consultant, investor, advisor, or contractor, engage in, perform services for, or assist any entity, business, or venture that develops, markets, or sells automated robotics, generative artificial intelligence, or related software anywhere in the world.

SECTION 4: NON-SOLICITATION OF CLIENTS AND TALENT

For a period of thirty-six (36) months post-termination, Executive shall not solicit, recruit, induce, or encourage any employee, contractor, vendor, or customer of Company to terminate or diminish their commercial relationship with Company.

SECTION 5: LIQUIDATED DAMAGES FOR BREACH

Executive acknowledges that any breach of Section 2, Section 3, or Section 4 will cause irreparable harm to Company. In the event of any breach or threatened breach, Executive shall immediately pay Company liquidated damages in the amount of One Hundred Thousand Dollars ($100,000) per violation, without prejudice to Company's right to obtain immediate ex-parte temporary restraining orders and permanent injunctions without posting any bond or security.

SECTION 6: INCENTIVE COMPENSATION CLAWBACK

Company reserves the unilateral right to claw back, cancel, or demand immediate refund of any bonuses, stock options, equity vesting, or performance incentives paid or granted to Executive within the preceding twenty-four (24) months if Company determines, in its sole discretion, that Executive committed misconduct, gross negligence, or violated company policies.

SECTION 7: GOVERNING LAW AND INJUNCTION RELIEF

This Agreement shall be governed by Delaware law. Executive consents to the exclusive personal jurisdiction of state and federal courts in New Castle County, Delaware. In any legal action brought by Company to enforce this Agreement, Executive shall reimburse Company for all legal fees and disbursements incurred.